

5.

CASE #	CASE NAME	HEARING NAME
CVRI2507384	MADELINE FOX VS COUNTY OF RIVERSIDE	DEMURRER – COUNTY OF RIVERSIDE

Tentative Ruling:

Moving party: Defendants County of Riverside and Glynn Wilburn

Responding party: Plaintiffs Madeline Fox, via GaL Melissa Fox, Lauren Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, Cory Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, and the Estate of Gavin Hinkley through Successors-in-Interest Lauren Hinkley and Cory Hinkley

This is a wrongful death action filed December 29, 2025 by Plaintiffs Madeline Fox, via GaL Melissa Fox; Lauren Hinkley; Cory Hinkley, and the Estate of Gavin Hinkley against Defendants County of Riverside, Glynn Wilburn, Southern California Edison Company, City of Beaumont, City of Calimesa, CalTrans, and American Medical Response of Inland Empire alleging 8 causes of action for 1) negligence, 2) dangerous condition of public property, 3) negligence, 4) negligence-failure to protect/voluntary undertaking, 5) negligence, 6) bad faith/gross negligence in emergency dispatch, 7) negligence, and 8) survival action.

On April 30, 2026, Plaintiffs filed a First Amended Complaint alleging 7 causes of action for 1) negligence, 2) dangerous condition of public property, 3) negligence, 4) negligence-failure to protect/voluntary undertaking, 5) negligence, 6) bath faith/gross negligence in emergency dispatch, and 7) wrongful death. Thereafter, CalTrans was dismissed by Plaintiffs. The name of Defendant American Medical was corrected to American Medical Response of Southern California.

Defendants County of Riverside and Glynn Wilburn demur to the FAC's 4th and 6th causes of action. Defendants assert that (1) Plaintiffs fail to plead facts sufficient to constitute a cause of action for Bad Faith/Gross Negligence in Emergency Dispatch Services against Defendant County of Riverside; and (2) Plaintiffs fail to state a claim for Negligent Failure to Protect/Voluntary Undertaking against Defendants.

In opposition, Plaintiffs assert that both causes of action are adequately pled. Plaintiffs sufficiently plead each element of Bad Faith /Gross Negligence in Emergency Dispatch, including duty, breach, causation, and damages as the FAC alleges that County demonstrated an extreme departure from the standard of care by failing to properly categorize the severity of MADELINE and Gavin's medical emergency, failing to follow established protocols, failing to prioritize medical aid to MADELINE and Gavin over WILBURN's less severe injuries and other non-emergency matters, and unreasonably delaying the dispatch of advanced life support personnel. The conduct of these Defendants as described herein constituted a systemic and reckless disregard for

the lives of MADELINE and Gavin. Further, Plaintiffs assert that Defendants' reliance on *Eastburn* is misguided and *Arista* and *Wright* confirm Plaintiffs' ultimate facts of gross negligence survive demurrer.

As to the 4th cause of action for negligent failure to protect/voluntary undertaking, Plaintiffs assert that the claim is sufficiently pled as it pleads was a special relationship giving rise to a duty of care to perform the undertakings with reasonable diligence and without increasing the risk of harm to victims. Plaintiffs assert that a special relationship existed because Defendants caused the crash.

In reply, Defendants assert that despite the new factual allegations in their opposition, the claim for bad faith, gross negligence in emergency dispatch is still insufficient. Plaintiff's Complaint does not contain sufficient allegations demonstrating that Defendants' actions constituted "the want of even scant care or an extreme departure from the ordinary standard of conduct" as required in bad faith/gross negligence in emergency dispatch causes of action. Plaintiffs attempt to argue that the question of Defendants' conduct is a question of fact for a jury to decide on. However, this argument fails to consider that certain factual allegations must be pleaded in order for a bad faith/gross negligence cause of action to reach a jury. Plaintiffs must still allege that Defendants committed acts possibly definable as gross negligence, ones that meet the heightened bar as previously established. Plaintiffs' Opposition cannot salvage their negligent failure to protect/voluntary undertaking claim because no special relationship has been adequately pled. As Defendants correctly noted in their Demurrer, Plaintiffs are attempting to establish a special relationship through the harm's way exception. Just as their Opposition to the sixth cause of action, Plaintiffs again try to include additional facts that are nowhere mentioned in their Complaint to support their argument.

The FAC alleges in pertinent part as follows:

On September 6, 2025, Riverside County Sheriff's Deputy WILBURN was driving a 2020 Ford Explorer patrol vehicle, bearing California license plate number 1585138 ("Patrol Vehicle") in the course and scope of his employment with the County of Riverside. Wilburn was traveling at or in excess of 71.9 miles per hour, approaching a red light, when he crashed into the left side of the 2018 Tesla Model 3 that was lawfully negotiating a left turn, killing the driver and leaving Madeline suffering life-threatening permanent injuries.

County and Wilburn while acting within the course and scope of their employment, owed a duty to all reasonably foreseeable people, including Plaintiffs, to exercise reasonable care and/or to refrain from bad faith and gross negligence in implementing basic operational policies and voluntarily undertaking to manage, assume control of, and secure the scene of the Subject Collision. Each of them, carelessly, negligently, recklessly, and/or in bad faith or with gross negligence voluntarily undertook to manage, assume control of, and/or secure the scene of the collision took affirmative steps to divert life-saving medical care away from Gavin and MADELINE. By voluntarily undertaking these responsibilities to manage, control, and secure the scene of the Subject Collision, RIVERSIDE, WILBURN, BEAUMONT, CALIMESA, and DOES 1

through 100, inclusive, created a special relationship with MADELINE and Gavin, giving rise to a duty of care to perform these undertakings with reasonable diligence and without increasing the risk of harm to the victims.

County acted in bad faith and/or with gross negligence in the dispatch of emergency personnel to the scene of the Subject Collision. Despite the severe, life-threatening injuries suffered by MADELINE and Gavin in the Subject Collision, County demonstrated an extreme departure from the standard of care by failing to properly categorize the severity of MADELINE and Gavin's medical emergency, failing to follow established protocols, failing to prioritize medical aid to MADELINE and Gavin over WILBURN's less severe injuries and other non-emergency matters, and unreasonably delaying the dispatch of advanced life support personnel. The conduct of these Defendants as described herein constituted a systemic and reckless disregard for the lives of MADELINE and Gavin.

Procedural Issues

Meet and Confer Requirements:

CCP §430.41(a) states that "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (CCP §430.41(a).) Further, the moving party is required to submit a declaration that "the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith." (CCP §430.41(a)(3)(B).)

The declaration submitted with the moving papers indicates that Defendants' counsel made several attempts to meet and confer, but that Plaintiffs' counsel failed to respond. The Court admonishes counsel for Plaintiff, Robert Reagan, and reminds counsel that the court could consider an OSC re: sanctions as to Plaintiffs' counsel for failure to respond to good faith meet and confer attempts.

Nevertheless, the Court will reach the merits of the demurrer.

Evidentiary Issues

Declaration of Attorney Robert Reagan:

Plaintiffs submitted the Declaration of Attorney Robert Reagan in support of its opposition. This declaration seeks to improperly submit evidence. The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v.*

Structural Materials Co. (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.) Accordingly, the court strikes the declaration, pursuant to its discretion under CCP section 436(b).

Analysis

To withstand a demurrer the complaint must contain “a statement of the facts constituting the cause of action, in ordinary and concise language.” (C.C.P. § 425.10.) “[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally a plaintiff need only plead facts necessary “to acquaint a defendant with the nature, source and extent of his claims.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court’s task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff’s allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

4th Cause of Action for Negligent Failure to Protect/Voluntary Undertaking (against both County and Wilburn): The elements of a cause of action for negligence are (1) the existence of a duty to exercise due care; (2) breach of that duty; (3) causation; and (4) damages. (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 500.) “ ‘Although the legal conclusion that ‘a duty’ exists is neither necessary nor proper in a complaint, facts which cause it to arise (or from which it is ‘inferred’) are essential to the cause of action.’ [Citations.] A complaint which lacks facts to show that a duty of care was owed is fatally defective. [Citation.]” (*Wise v. Superior Court* (1990) 222 Cal.App.3d 1008, 1013.)

The FAC alleges that as Wilburn caused the collision a special relationship existed between Wilburn/County and Gavin and Madeline such that when they voluntarily undertook to manage the collision scene, they owed a duty to exercise due care in handling the collision site. Plaintiffs assert that none of the cases cited by Defendants is applicable because they did not involve cases where the peril presented was caused by the officer. However, Plaintiffs did not cite any authority that supports finding a special relationship where the peril was caused by the officer, after which the officer voluntarily assumed to handle the collision scene.

Ultimately, this claim is based on a voluntary undertaking which is based on the premise that Wilburn/County did not have a duty to handle the collision scene, but once they did, they owed a duty, based on a special relationship, not to place persons in peril or increase the risk of harm. (See *Williams v. State of California* (1983) 34 Cal.3d 18, 24.) The FAC does not allege that anything Wilburn/County did at the collision scene created a special relationship that created a duty to affirmatively act to assist or protect Gavin or Madeline. Accordingly, the court sustains the demurrer to the 4th cause of action with 21 days leave to amend.

6th Cause of Action for Bad Faith/Gross Negligence in Emergency Dispatch (against County): Pursuant to California Health and Safety Code Section 1799.107(b), public entities enjoy qualified immunity when it comes to emergency dispatch services. In order for plaintiffs to overcome this statutory immunity, plaintiffs must plead specific factual allegations that constitute gross negligence – defined as "the want of even scant care or an extreme departure from the ordinary standard of conduct." (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747; *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175.) Gross negligence is a significantly higher standard than ordinary negligence and requires that the conduct fall "greatly below the standard established by law for the protection of others." (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747.) California Courts have held that gross negligence requires more than a procedural misstep, miscommunication or delay. It requires conduct that is egregious in nature, conduct that is done deliberately or with reckless disregard. Mere errors in judgment, protocol deviations, and ordinary dispatch deficiencies do not meet the heightened bar of gross negligence. (See *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175; *Arista v. County of Riverside* (2018) 29 Cal.App.5th 1051; *Wright v. City of Los Angeles* (1990) 219 Cal.App.3d 318.) The FAC does not state sufficient facts to state a cause of action for bad faith/gross negligence in emergency dispatch. Accordingly, the court sustains the demurrer to the 6th cause of action with 21 days leave to amend.